



ACQUISITION
AND SUSTAINMENT

OFFICE OF THE ASSISTANT SECRETARY OF WAR
3000 DEFENSE PENTAGON
WASHINGTON, DC 20301-3000

In reply refer to
DARS Tracking Number: 2026-O0021

MEMORANDUM FOR COMMANDER, UNITED STATES CYBER
COMMAND (ATTN: ACQUISITION EXECUTIVE)
COMMANDER, UNITED STATES SPECIAL OPERATIONS
COMMAND (ATTN: ACQUISITION EXECUTIVE)
COMMANDER, UNITED STATES TRANSPORTATION
COMMAND (ATTN: ACQUISITION EXECUTIVE)
DEPUTY ASSISTANT SECRETARY OF THE ARMY
(PROCUREMENT)
DEPUTY ASSISTANT SECRETARY OF THE NAVY
(PROCUREMENT)
DEPUTY ASSISTANT SECRETARY OF THE AIR FORCE
(CONTRACTING)
DEFENSE AGENCY AND DOD FIELD ACTIVITY DIRECTORS

SUBJECT: Class Deviation—Revolutionary Federal Acquisition Regulation (FAR) Overhaul
Part 10, Defense FAR Supplement (DFARS) Part 210

Effective February 1, 2026, contracting officers shall use—

- The revised FAR Part 10, Market Research published on the Revolutionary FAR Overhaul web page at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-10> in lieu of the text codified at 48 CFR chapter 1 (<https://www.ecfr.gov>).
- The attached DFARS Part 210, Market Research in lieu of the text codified at 48 CFR chapter 2; and
- The attached DFARS Procedures, Guidance, and Information (PGI) 210, Market Research in lieu of the PGI text published on the Defense Pricing, Contracting, and Acquisition Policy web page at <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>.

This class deviation implements the following:

- Section 2 of E.O. 14275, Restoring Common Sense to Federal Procurement, which establishes the policy that the FAR “should only contain provisions required by statute or essential to sound procurement, and any FAR provisions that do not advance these objectives should be removed.

- Section 4(a) of E.O. 14265, Modernizing Defense Acquisitions and Spurring Innovation in the Defense Industrial Base which requires the Secretary of War to eliminate or revise any unnecessary supplemental regulations or any other internal guidance, such as relevant parts of the Financial Management Regulation and Defense Federal Acquisition Regulation Supplement.
- The Office of Management and Budget memorandum, M-25-26 issued on May 2, 2025, titled, Overhauling the Federal Acquisition Regulation, which provided additional guidance to federal agencies regarding the FAR overhaul.

This class deviation remains in effect until rescinded or incorporated into the FAR, DFARS, and DFARS PGI. Inquiries regarding this class deviation can be addressed to osd.pentagon.ousd-a-s.mbx.dfars@mail.mil.

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John M. Tenaglia
Principal Director,
Defense Pricing, Contracting, and
Acquisition Policy

Attachments:
As stated

PART 210—MARKET RESEARCH

210.001 Market research requirements.

(b) In addition to the requirements of FAR 10.001(b)—

(i)(A) Agencies must conduct market research appropriate to the circumstances before issuing a solicitation with tiered evaluation of offers (section 816 of Pub. L. 109-163); and

(B) Contracting officers must use the results of market research to determine whether the criteria in FAR part 19 are met for setting aside the acquisition for small business or, for a task or delivery order, whether there are a sufficient number of qualified small business concerns available to justify limiting competition under the terms of the contract. If the contracting officer cannot determine whether the criteria are met, the contracting officer must include a written explanation in the contract file as to why such a determination could not be made (section 816 of Pub. L. 109-163); and

(ii) Contracting officers must use market research, where appropriate, to inform price reasonableness determinations (see [212.204\(a\)](#) and [215.4](#)).

(e) Follow the procedures at [PGI 210.001](#)(e) regarding contract file documentation.

210.070 Market research report guide for improving the tradecraft in services acquisition.

When acquiring services, see [PGI 210.070](#), for the “Market Research Report Guide for Improving the Tradecraft in Services Acquisition”.

PGI 210—MARKET RESEARCH

PGI 210.001 Market research requirements.

(e) When documenting the results of market research—

(1) Contracting officers should retain information on potential offerors that express an interest, in order to solicit feedback in instances when only one offer is received on a competitive solicitation (see PGI 215.371).

(2) Contracting officers should ensure the contract file includes the—

- (i) Methods used to conduct market research;
- (ii) Timeframe in which market research was conducted;
- (iii) Analysis of the capabilities of the potential offerors that were identified during market research; and
- (iv) Any conclusion(s) reached as a result of market research analysis.

PGI 210.070 Market research report guide for improving the tradecraft in services acquisition.

The “Market Research Report Guide for Improving the Tradecraft in Services Acquisition” is designed to aid in the collection and sharing of standardized market research information across the Department. The guide is available for download at [https://www.acq.osd.mil/asda/dpc/cp/policy/docs/sa/2017_Market_Research_Guide_\(Final\).pdf](https://www.acq.osd.mil/asda/dpc/cp/policy/docs/sa/2017_Market_Research_Guide_(Final).pdf).